Office of Research Assurance

Human Subject Research Protections Standard Operating Procedures (SOP)

SOP- 820: Suspension or Termination of IRB Approval_

Number	Effective Date	Version Number	Previous Versions
820	8/7/2024	v.2	v.1 (SOP470)

Purpose

SOP-820 outlines NASA IRB's authority to suspend or terminate NASA IRB-approved human subjects research that is not being conducted in accordance with NASA IRB's requirements or that has been associated with a detrimental change in the risk-benefit ratio. The procedures for suspension or termination of a NASA IRB-approved protocol are detailed.

Policy

1. NASA 14 CFR 1230.113 and FDA 21 CFR 56.113 state that an IRB shall have the authority to suspend or terminate approval of research that is not being conducted in accordance with the IRB's requirements or that has been associated with unexpected serious harm to subjects. Any suspension or termination of approval shall include a statement of the reasons for the IRB's action and shall be reported promptly to the investigator, appropriate institutional officials, and OHRP or FDA (as appropriate).

2. NASA 14 CFR1230.108 requires the NASA IRB have written procedures to ensure that any suspension or termination of IRB approval are promptly reported to OHRP.

3. The NASA IRB has the authority to suspend or terminate any human subjects research activity that has not been reviewed and approved or determined exempt by the NASA IRB.

4. The NASA IRB has the authority to suspend or terminate approval of single site research relying upon NASA IRB as the IRB of record.

5. The NASA IRB has the authority to suspend or terminate its approval of the research either at one institution because of a unique problem regarding the conduct of the research at that institution or at all institutions because of a study-wide problem when engaged in multicenter research relying upon the NASA IRB as the single IRB for review of the project.

6. It is the policy of the NASA IRB that a research project may be **suspended or terminated** for a variety of reasons in accordance with 14 CFR 1230.113 and FDA 21 CFR 56.113, including but not limited to:

    a. Human subjects research conducted outside of NASA IRB approval
    b. Violation of the rights or welfare of human subjects or others
    c. Detrimental change in the risk-benefit ratio of the study
    d. Serious or continuing noncompliance with Federal regulations, NASA IRB policies, or
    e. New information regarding increased risk to human subjects or others, including but not limited to serious adverse events and unanticipated problems

7. It is the policy of the NASA IRB that suspension or termination of IRB approval may occur at any time during the period of IRB approval.
    a. After suspension of an IRB-approved protocol, the NASA IRB has the authority to terminate the research if the events prompting the suspension of IRB-approval cannot be corrected in a way that serves the best interests of research participants.

8. It is the policy of the NASA IRB that the determination to **suspend** IRB approval is made:
    a. At a convened IRB meeting either:
        i. At the next scheduled convened IRB meeting, or
        ii. The IRB Chair/designee may convene a Rapid Response meeting prior to the next scheduled IRB meeting if he or she feels it is warranted for the safety, rights, and welfare of research participants.
    b. By the IRB Chair/designee if an emergent situation arises and review by a convened IRB is not possible. If the IRB Chair/designee determines a suspension of research is warranted, the IRB members will be notified of and review the circumstances surrounding the suspension at the next scheduled or rapid response convened meeting.

9. It is the policy of the NASA IRB that the determination to **terminate** IRB approval is made:
    a. Only at a convened IRB meeting.
        i. At the next scheduled convened IRB meeting, or
        ii. The IRB Chair/designee may convene a Rapid Response meeting prior to the next scheduled IRB meeting if he or she feels it is warranted for the safety, rights, and welfare of research participants.

10. The Flight Surgeon Lead for the mission may temporarily suspend research until substantive changes to the spaceflight protocol are reviewed by the NASA IRB (NPR 7100.1D)

11. The Investigator or study sponsor may initiate a suspension or termination of a study approved by the NASA IRB due to various reasons including, but not limited to those listed in **Policy** 6.a-e.

    a. The Investigator or sponsor must notify the IRB in writing within 3 business days of initiating the suspension or termination. The Investigator must describe the steps that are or will be in place to protect the welfare of currently enrolled participants and any corrective actions that will be taken to address the cause for the research suspension or termination.
    b. The report must include, at a minimum, the information listed in 'Investigator Responsibilities' in c2(1) – (4) below, as applicable.
    c. The report will be reviewed at a convened IRB meeting according to the procedures in this the document. The NASA IRB will determine whether or not to **suspend IRB approval, terminate IRB approval,** or take no action.

***Important Note**: The cessation or hold of a single aspect of the research (i.e. new participant enrollment, procedures, dosing, or data analysis) is not a suspension of IRB approval unless it is found to be associated with an unanticipated problem involving risks to human subjects or others (UPIRSO), serious noncompliance, and/or continuing noncompliance and the NASA IRB finds that the event requires suspension or termination or IRB approval.*

Procedures

1. NASA IRB Procedures for review of Suspension or Termination of NASA IRB-approved research
    a. If the suspension or termination is related to a UPIRSO, serious adverse event (SAE), or research noncompliance, the IRB reviewer must complete the tasks as spelled out in the corresponding SOPs
    b. If the suspension or termination is not related to an UPIRSO, SAE, or research noncompliance, the IRB reviews the written report submitted by the investigator as outlined in this SOP, "Investigator Responsibilities, c2(1) – (4)."
    c. When cause for further **investigation** is determined by the NASA IRB Chair/delegate, NASA IRB office, and/or convened NASA IRB, the following applies:
        i. Investigations or requests for more information may be initiated by the NASA IRB Chair/designee in cooperation with the NASA IRB Office Staff and the NASA Office of Research Assurance Director and/or Institutional Official (IO) to suspend or terminate protocols in emergent situations, when it has been determined that the rights, safety, or welfare of subjects are in immediate jeopardy.

ii. Investigations or requests for more information may be initiated in preparation for a convened IRB meeting when deemed necessary to review the suspension or termination. IRB Reviewers shall have the opportunity to initiate *investigations* to obtain information necessary to determine that the NASA IRB approved protocol must be suspended or terminated and/or to propose ***stipulations*** during the Convened IRB Meeting.
    1. Requests for more information may include, but are not limited to:
        a. requests for additional documentation or study records,
        b. interviews with the investigator(s) or others involved in the research process,
        c. correspondence with the investigator, site(s), sponsor or oversight committees (DSMB, etc.), other IRB members, or any other fact-finding procedures the NASA IRB deems necessary.
    2. The NASA IRB will use diligent efforts to ensure the investigation is thorough and examines all records and evidence relevant to reaching a conclusion and/or to make **stipulations**, conducts interviews as necessary, and communicates with the investigator and research staff as necessary throughout the process.
    3. The NASA IRB may inform the Investigator(s) of the investigation or contact them for a response during the investigation.
    4. Any NASA IRB members with a potential conflict of interest will be recused from fact finding and preparation of the investigation summary report.
    5. The investigation, and subsequent report of findings, should be completed within two weeks, but no longer than 30 days from commencement, unless reasons for the delay are documented.
    6. The process and outcomes of the investigation will be thoroughly documented and electronically stored in the NASA IRB Office.

iii. The NASA IRB may require **stipulations** to protect research participants when NASA IRB approval is Suspended or Terminated, including but not limited to the following:
    1. Continued safety follow-up of currently enrolled participants, which may include continued reporting of any additional adverse events, UPIRSOs, or outcomes to the NASA IRB and study sponsor for a specified amount of time.
    2. Cessation of all subject accrual, study procedures, data analysis or other research activities associated with the

research protocol (note: if only accrual is suspended, enrolled participants should continue per the protocol).
3. Continued study treatment / intervention by the same or different investigator which may include a safe and monitored dose withdrawal plan from current study medication and/or a final study visit during which a physical exam or other tests will be performed.
4. In certain circumstances, research activities may continue if stopping study procedures/treatment will adversely affect the welfare of a subject. This will be determined by the NASA IRB Chair or his/her designee.
5. Procedures for withdrawal from the research that protects the rights, safety, and welfare of participants, which may include, but is not limited to, withdrawal and transition of participants from research to clinical care.
6. Notification to all current and/or former participants of the suspension or termination of the research
7. Require that participants re-consent to study participation
8. Notification by the Investigator or sponsor to editors if affected data has been submitted for publication or has been published.
9. Notification by the Investigator to funding agencies.
10. Dependent upon the status of ongoing study procedures at the time of termination, continuing review of the research may still be required or occur more frequently, as determined by the convened IRB.
11. Additional actions deemed necessary by NASA IRB to protect the rights and welfare of enrolled participants and/or to protect the integrity of the research protocol.

iv. For ***Suspensions of IRB approval only***, the IRB may also require the following **stipulations** (but not limited to):
1. Additional training and education of investigators and key personnel
2. More frequent review of the study or other studies under the purview of the investigator
3. Initiate audits of the affected or all active protocols under the purview of the investigator
4. Disallow the use of study data collected
5. Cessation of subject accrual, study procedures, data analysis or other actions associated with the research protocol deemed necessary by NASA IRB

v. Corrective actions and stipulations necessary for the NASA IRB to consider reinstatement of IRB approval of the research will be described in the written correspondence to the Investigator.

1. The investigator has satisfactorily resolved any pending issues as required by NASA IRB. This is determined by a quorum vote of the convened NASA IRB.
2. The letter to NASA IRB from the Investigator or sponsor for reinstatement of a suspended study should address the following:
    a. reason for requesting reinstatement
    b. description of how the study has changed since approval, and submission a modification, when applicable
    c. how many subjects were enrolled prior to suspension, and at what point in the treatment/procedures the subjects were at the time of suspension
    d. any adverse events or amendments since the last continuing review including a description of each, and any additional relevant information (e.g. corrective action plan)
    e. a documented plan to ensure the reason(s) for suspension will not happen again and that the study will be in compliance with all applicable laws and regulations
    f. anticipated enrollment, if the study is reactivated
3. When IRB-approval is reinstated, the IRB may require that subjects who were previously enrolled be re-consented.
4. During suspension of IRB approval, the protocol remains subject to continuing review requirements and deadlines.

vi. For ***Terminations of IRB approval only***, the study may be reinstated with appropriate modifications to address the reason(s) for termination. Investigators must submit a completely new application if they wish to resume a terminated study.

2. NASA IRB Responsibilities
    a. When a research protocol is suspended or terminated from IRB approval, a member of the NASA IRB Office will note whether any other submissions (modifications, continuing reviews, etc.) are currently under review and the NASA IRB Office will ensure that no approvals are issued after termination or until the suspension is lifted.
        i. If, after one year of suspension or the expiration date of the study (whichever comes first), progress has not been made on the pending issues, the NASA IRB Office will administratively close the study protocol.
3. Investigator Responsibilities
    a. The Investigator is responsible for reporting violations of research compliance and identification of additional risks to participants to the NASA IRB, including, but not limited to, those listed in **Policy** 6.a-e.
    b. When a protocol is suspended or terminated, the investigator must stop all research activities related to the protocol, including subject recruitment

and enrollment, procedures, and analysis and/or publication of existing data, as determined by the IRB.

c. The Investigator must notify the NASA IRB in writing within 3 days of any investigator or sponsor-initiated suspension or termination and describe the reason for the suspension or termination and the measures in place and those that will be taken to ensure the safety, rights and welfare of subjects.
    i. If the suspension or termination is related to a UPIRSO, SAE, or research noncompliance, the Investigator must submit a reportable new information (RNI) form within the e-IRB.
    ii. If the suspension or termination is not related to an UPIRSO, SAE, or research noncompliance, the Investigator must submit a modification within the e-IRB system containing the following information (but not limited to):
        1. A statement that the study is suspended or terminated.
        2. Reason for the suspension or termination
        3. Number of subjects currently enrolled
        4. The date that the suspension or termination went (will go) in to effect
        5. When the suspension or termination involves the withdrawal or current participants from the research, the Investigator will be required to:
            a. Inform enrolled participants that the study has been suspended or terminated
            b. Develop procedures for withdrawal that protect the rights, safety, and welfare of participants, and develop methods of informing those procedures to participants including, but not limited to:
                i. careful and safe titration off of study drug, as recommended by the Sponsor and/or the investigator(s)
                ii. transfer of care to another investigator
                iii. arrangements for clinical care outside the research environment including details and time points for follow-up, if necessary
                iv. safety outcomes reports which may include adverse event reports from sites at specific time intervals, and/or DSMB reports from the sponsor
                v. Data analysis stipulations (restrictions on data inclusions, publication restrictions, etc.)

4. The Investigator is responsible for notifying, in a timely manner, all co-investigators, key personnel, and other research staff associated with the protocol as well as any subcontract grantees when a request to suspend or terminate has been submitted to the NASA IRB.

5. The Investigator must promptly respond to any NASA IRB terms and conditions as outlined in the NASA IRB correspondence related to suspension or termination of IRB-approved research.
6. The Investigator may submit concerns in writing to the NASA IRB within 14 days of receipt of the NASA IRB report detailing the Findings and stipulation. The Investigator may request a meeting to discuss the concerns. NASA IRB will inform the investigator of the outcome after further review.

Definitions

Investigator**:** the individual responsible for personally conducting or supervising the conduct of research and for protecting the rights, safety, and welfare of subjects enrolled in the research. The investigator ensures all human subjects research is ethically conducted and in accordance with all applicable federal (including HIPAA if applicable), state/provincial, and local laws and regulations, the IRB's requirements/ determinations, and Good Clinical Practice, as appropriate.

- In this document, 'Investigator' refers to the Site Investigator, Overall/Study Investigator, or both; whichever is most appropriate.

Suspension of IRB Approval: NASA IRB approval is suspended and all project activities must cease until any pending issues can be resolved satisfactorily. Suspended studies are still approved, but the research team may not perform research activities associated with the NASA IRB approved protocol.

- A sponsor-imposed suspension alone does not constitute a suspension of IRB approval, as it is not an action by the IRB to withdraw approval of a previously IRB approved protocol.

Termination of IRB Approval: Termination is a permanent withdrawal of NASA IRB approval. All project activities must cease immediately, including enrollment, treatment and/or intervention, data analysis and any resulting data or analysis is null and void. Terminated studies are not considered complete.

Closure: An administrative status whereby a previously NASA IRB-approved protocol's expiration date has passed and an investigator has not submitted a renewal. Or, the investigator has submitted a study closure request. The NASA IRB assumes no human subject research activities are ongoing and, for administrative record keeping, the study record is closed.

References

1. 14CFR1230
2. 21CFR56
3. NPR 7100.1D
4. Guidance on Reporting Incidents to OHRP (2011) https://www.hhs.gov/ohrp/compliance-and-reporting/guidance-on-reporting-incident/index.html

5. Association for the Accreditation of Human Research Protection Programs (AAHRPP) Tip Sheet 15: Reporting Unanticipated Problems Involving Risks to Participants or Others, Terminations or Suspensions of IRB or EC Approval, and Serious or Continuing Noncompliance http://www.aahrpp.org/apply/resources/tip-sheets
6. AAHRPP Tip Sheet 21: Suspensions and Terminations of IRB or EC Approval http://www.aahrpp.org/apply/resources/tip-sheets

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v.2	Remove reference to 45CFR46, removed reporting (separate SOP created), removed noncompliance (separate SOP created)	J. Kisenwether	M. Covington	7Aug2024